

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE SHAHID BILAL HASSAN
MR. JUSTICE SHAKEEL AHMAD

C.P.L.A. No. 1103/L/2016

[Against the judgement dated 26-01-2016 passed by the Lahore High Court, Bahawalpur Bench, in C.R. No. 231-D of 2010]

Noor Muhammad etc.

...Petitioner(s)

Versus

Ghulam Haider etc.

...Respondent(s)

For the Petitioner(s): : Mr. Aejaaz Ahmad Ansari ASC.
Mr. Amir Aqeel Ansari, ASC.

For the Respondent(s): : Mr. Anwaar Ul Haq Pannun, ASC.

Date of Hearing : 04.06.2026

JUDGMENT

SHAHID BILAL HASSAN, J:- Brief facts germane to the filing of the instant petition are as such that Roshan son of Bora, owner of the suit property, died in the year 1955. Consequent upon his death, Inheritance Mutation No.74 was entered on 04.04.1955 in favour of his legal heirs. On the same day, Mutation No.75 was also entered on the basis of an alleged oral gift purportedly made by the widow and daughters of the deceased in favour of his two sons/ brothers. Both mutations were sanctioned on 17.04.1955.

The case of the plaintiffs/petitioners is that the alleged gift never took place and that Mutation No.75 was wrongly sanctioned to deprive the female heirs of their lawful inheritance. After remaining in possession of the property, the sons and their

successors subsequently dealt with the property through exchange mutations and gift transactions in favour of their descendants. The plaintiffs instituted a suit for declaration, challenging the validity of Mutation No.75 and the subsequent transactions founded thereupon. The suit was dismissed by the learned Trial Court. The appeal preferred thereagainst met the same fate before the learned Appellate Court. A Civil Revision filed before the Lahore High Court was also dismissed vide judgment dated 26.01.2016. Hence, this petition for leave to appeal.

2. Learned counsel for the petitioners contends that the courts below gravely erred in treating Mutation No.75 as proof of a valid gift. He submits that the burden to prove the gift lay entirely upon the beneficiaries thereof and that the essential ingredients of a valid Hibba, namely declaration, acceptance and delivery of possession, were never established through independent and reliable evidence. He argues that a mutation does not create title and that long possession cannot cure the fundamental defect of failure to prove the gift itself. He further submits that the subsequent exchange mutations and gift mutations constituted fresh assertions of exclusive ownership and fresh denials of the inheritance rights of the petitioners. Learned counsel lastly contends that the courts below failed to appreciate the settled principles laid down by this Court regarding protection of inheritance rights of female heirs and attached undue sanctity to old revenue entries.

3. Conversely, learned counsel for the respondents supports the impugned judgments. He submits that Mutation No.75 was sanctioned in 1955 and remained unchallenged for decades. According to him, the respondents and their predecessors remained in possession throughout, cultivated the land and exercised all rights of ownership. He contends that the plaintiffs were fully aware of the mutation and that their conduct in keeping mum for a long period demonstrates acknowledgment of the respondents' title. He argues that the suit was hopelessly barred by limitation and that the concurrent findings of the courts below do not warrant interference by this Court.

4. We have heard the learned counsel for the parties at length and have examined the record with their able assistance.

5. The principal question requiring determination is whether the respondents succeeded in proving a valid oral gift by virtue whereof the widow and daughters of Roshan divested themselves of their inheritance rights in favour of the sons/brothers and, if not, whether the courts below were justified in dismissing the suit primarily on the basis of limitation and long possession?

6. At the very outset, we note that the entire edifice of the respondents' claim rests upon Gift Mutation No.75. Once the validity of the gift was challenged, the burden squarely shifted upon the beneficiaries of the alleged transaction to establish the same in accordance with law. In Faqir Ali and others v. Sakina Bibi and others (PLD 2022 SC 85), this Court held that where the beneficiaries of a gift seek to exclude female heirs from inheritance, the onus lies upon them to prove the gift. It was held that:

“In view of the fact that the Appellants were beneficiaries of the gifts through which Respondents Nos. 1 and 2 who are admittedly legal heirs of the deceased Muhammad Ali were deprived of their inheritance; the onus was on the Appellants to prove the gifts. It is trite that a gift in order to be valid and binding on the parties must fulfill three conditions, namely (i) declaration of gift by the donor, (ii) acceptance of gift by the donee, and (iii) delivery of possession of corpus. ...

It has repeatedly been held that beneficiary of a document is not only bound to prove execution of the document but also to prove the gift by producing cogent and reliable evidence that the three necessary requirements of a valid gift namely, offer, acceptance and delivery of possession have been fulfilled, to the satisfaction of the Court. ...

In the case of Barkat Ali v. Muhammad Ismail (2002 SCMR 1938) this Court has already taken notice of the fact that in the wake of frivolous gifts generally made to deprive female members of the family from benefit of inheritance available to them under Sharia as well as the law, the Courts are not divested of the powers to scrutinize the reasons and justification for a gift so that no injustice is done to a legal heir who otherwise stands to inherit from the estate of a deceased predecessor or

relative and that the course of inheritance is not bypassed or artificially blocked.”

7. The same principle had already been settled in Muhammad Sarwar v. Mumtaz Bibi and others (2020 SCMR 276), wherein this Court held that where the validity of a gift mutation is challenged, it is incumbent upon the beneficiary not only to prove the mutation but also to independently establish the gift itself through credible evidence. Mere existence of a mutation was held insufficient to establish title.

8. Accordingly, the burden resting upon the respondents was not confined merely to proving the technical ingredients of a valid gift. The alleged transaction had the effect of divesting the widow and daughters of Roshan of valuable inheritance rights which had already vested in them by operation of law. In such circumstances, it was incumbent upon the respondents, as beneficiaries of the transaction, to establish through cogent and convincing evidence not only that a declaration, acceptance and delivery of possession had taken place, but also that the female heirs were fully aware of the nature, extent and consequences of the rights sought to be relinquished. The record, however, is conspicuously silent on both counts. No evidence has been brought on record to demonstrate that the widow and daughters were apprised that, by virtue of the alleged gift, they would stand permanently divested of their proprietary rights in the inherited estate. Nor is there any evidence showing that they consciously and voluntarily elected to abandon such rights. The respondents have, thus, failed to discharge the burden, which the law placed squarely upon them. This omission assumes particular significance because the alleged gift was not in favour of strangers but in favour of the very persons who stood to benefit from the exclusion of the female heirs. In such circumstances, the law requires the court to subject the transaction to the closest scrutiny. Mere proof of a mutation entry or long possession cannot substitute proof that the female heirs knowingly and voluntarily relinquished rights which had already vested in them by succession.

9. The courts below, however, approached the controversy from an entirely different angle. Instead of examining whether the respondents had discharged the burden of proving the gift, they proceeded on the assumption that the mutation itself constituted proof of the transaction. This approach is contrary to settled law. A mutation is maintained primarily for fiscal purposes and neither creates nor extinguishes title¹. Where ownership is claimed through an oral gift, title flows from the gift itself and not from the mutation recording it. The mutation may at best corroborate an otherwise established transaction, it cannot substitute proof thereof.

10. The courts below further attached considerable significance to the evidence relating to the consolidation proceedings conducted in the year 1968, the preparation of *Wanda Jaat*, the subsequent private partition allegedly effected between Sardar and Laal, and the later course of dealings between the parties. In our view, none of these circumstances had any bearing upon the real controversy before the Courts. The issue requiring determination was whether a valid oral gift had been made in the year 1955. Events occurring many years thereafter could not relieve the respondents of their obligation to establish the essential ingredients of the alleged gift. Subsequent consolidation proceedings, private arrangements amongst the alleged donees, or revenue entries recorded long after the alleged transaction were incapable of proving that a valid gift had, in fact, come into existence on 17.04.1955.

11. Equally misplaced was the reliance placed upon the testimony of Noor Muhammad (D.W.1). Although he purported to depose regarding the alleged gift, he admittedly was not present before the Revenue Officer at the time of attestation of Mutation No.75, did not participate in the mutation proceedings, and was unable to identify the persons who appeared before the revenue authorities or the

¹ Ghulam Sarwar (deceased) through LRs and others v. Ghulam Sakina (2019 SCMR 567), Mst. Ramzanu Bibi v. Ibrahim (deceased) through LRs. and others (2025 SCMR 955), Noor Ud Din (Deceased) through LRs. v. Pervaiz Akhtar and others (2023 SCMR 1928), Mst. Barikhna and others v. Faiz Ullah Khan and others (2020 SCMR 1618), Zohra Bibi and another v. Haji Sultan Mahmood and others (2018 SCMR 762), Khan Muhammad through L.Rs. and others v. Mst. Khatoon Bibi and others (2017 SCMR 1476), Muhammad Munir v. Muhammad Saleem and others (2004 SCMR 1530), Muhammad Younus Khan and 12 others v. Government of N.-W.F.P. through Secretary, Forest and Agriculture, Peshawar and others (1993 SCMR 618) and Noor Ahmad and 20 others v. Mst. Zeba and 12 others (1991 SCMR 1990).

circumstances in which the mutation was sanctioned. His evidence, therefore, was not evidence of the transaction itself but, at best, evidence of what he subsequently came to learn regarding the same. Such testimony could not furnish proof of the declaration, acceptance or delivery of possession, required for a valid gift.

12. The High Court also relied heavily upon the circumstance that the plaintiffs had acquired knowledge of the mutation many years before institution of the suit. This approach, however, conflates two distinct inquiries. Knowledge of a mutation may be relevant for the purposes of limitation, but it is not proof of the transaction recorded therein. Even if it were assumed that the plaintiffs had become aware of Mutation No.75 decades earlier, such knowledge could not dispense with the respondents' obligation to independently establish the gift itself. The question whether the plaintiffs knew of the mutation and the question whether a valid gift had actually taken place are separate and independent issues.

13. Significantly, the respondents themselves relied upon evidence suggesting that for several years after the death of Roshan, shares in the produce of the land (hissa batai) continued to be given to the female heirs. Far from supporting the respondents' case, this circumstance creates doubt regarding the assertion that the widow and daughters had completely and irrevocably divested themselves of all proprietary rights in the estate in 1955. Had a valid and absolute gift truly been made, there would ordinarily have been no occasion to continue recognizing the plaintiffs' entitlement in the produce of the land. The courts below failed to appreciate this important aspect of the record.

14. The courts below also appear to have treated Mutation No.75 itself as substantive proof of title. Such an approach runs contrary to the settled jurisprudence of this Court. At the costs of repetition, it is reiterated that a mutation is maintained for fiscal purposes and neither creates nor extinguishes proprietary rights. Where the very factum of a gift is disputed, the mutation recording the transaction cannot take the place of proof. At best, it may lend support to an otherwise established transaction. It cannot, standing alone,

establish declaration, acceptance and delivery of possession, all of which must be proved through independent and reliable evidence.

15. The entire reasoning adopted by the courts below ultimately rested upon limitation and the lapse of time between the attestation of Mutation No.75 and the institution of the suit. While delay may, in an appropriate case, furnish a valid defence, limitation cannot be permitted to eclipse the anterior and foundational question whether the alleged gift itself stood proved in accordance with law. Before examining the effect of delay, the courts were first required to determine whether the respondents had discharged the burden of establishing a valid gift. Having failed to undertake that exercise and having instead presumed the existence of the gift from subsequent possession, revenue entries and lapse of time, the courts below fell into a manifest error of law.

16. More importantly, a careful examination of the evidence reveals a complete absence of proof regarding delivery of possession, which constitutes one of the indispensable ingredients of a valid gift under Muhammadan Law. No witness identified the act by which possession was allegedly transferred. No witness specified when such transfer took place, in what manner it was affected, or how the donors relinquished dominion over the property in favour of the donees. The evidence merely established that Sardar and Laal remained in possession of the land. Such possession, however, was not necessarily referable to the alleged gift because they were already among the legal heirs of the deceased and were cultivating the property in that capacity. Continued possession by a co-heir cannot, without more, be treated as proof of delivery of possession pursuant to a gift.

17. The law relating to co-heirs is equally well settled. In Ghulam Ali and others v. Mst. Ghulam Sarwar Naqvi (PLD 1990 SC 1), this Court held that possession of one heir is ordinarily deemed possession on behalf of all heirs unless there is a clear and unequivocal repudiation of the rights of the other co-heirs. The Court emphasized that inheritance rights of female heirs occupy a

special position in Islamic jurisprudence and constitute a matter of public policy in the following words:

“The heir in possession was considered to be in constructive possession of the property on behalf of all the heirs in spite of his exclusive possession, e.g., the possession of the brothers would be taken to be the possession of their sisters, unless there was an express repudiation of the claims of the sisters by the brothers.”

18. The same principle has been consistently followed by this Court and was recently reaffirmed in Abrar Hussain v. Mst. Bibi Shahida and others (**PLD 2026 SC 42**), wherein it was held that the possession of one co-sharer is deemed to be for the benefit of all co-sharers and that doctrines of waiver, estoppel, relinquishment and adverse possession generally do not operate amongst co-heirs.

19. The impugned judgments also fail to account for the consistent jurisprudence of this Court concerning protection of women's inheritance rights. In Mirza Abid Baig v. Zahid Sabir (deceased) through legal representatives and others (**2020 SCMR 601**), this Court observed that female heirs are often deprived of inheritance through arrangements which cannot withstand judicial scrutiny and reiterated that purported relinquishment of inheritance rights by women is to be viewed with extreme caution. Similarly, in Mst. Aksar Jan and others v. Mst. Shamim Akhtar and others (**2025 SCMR 88**), this Court lamented the continuing deprivation of women from their lawful inheritance through bogus documentation, fraudulent statements and manipulative revenue entries, and held that courts must not permit procedural technicalities to perpetuate such deprivation, in the following words:

“Unfortunately, and all too often, females continue to be deprived of their inheritance by employing various nefarious tactics, bogus documentation, fraudulent statements with the facilitation of Revenue department officials and some advocates. The courts too at times are not vigilant enough to protect inheritance rights, particularly of females and other vulnerable members of society... The practice of depriving females of their inheritance must be put a stop to, and those who do so must be made to pay substantial costs and not be permitted to benefit from procedural technicalities.”

Similarly, in Tanvir Sarfraz Khan v. Federation of Pakistan **(2025 SCMR 98)**, this Court reiterated that inheritance rights vest immediately upon the death of the predecessor and that the rights of vulnerable members of society, particularly women, require vigilant judicial protection.

20. The respondents have heavily relied upon limitation and the lapse of time. There can be no quarrel with the proposition that stale claims ought not ordinarily be entertained. Nevertheless, limitation cannot be examined in isolation from the nature of the right asserted and the transaction relied upon. In Haji Muhammad Yunis (deceased) through legal heirs v. Mst. Farukh Sultan and others **(2022 SCMR 1282)**, this Court explained the distinction between a mere adverse revenue entry and an actual denial of title. The Court observed that entries in the revenue record do not by themselves create or extinguish proprietary rights. More importantly, the present case is not confined to the original mutation of 1955. The record before us shows that the respondents and their successors subsequently executed exchange transactions and gift transactions founded upon Mutation No.75. The principle enunciated in Haji Muhammad Yunis (supra) applies where the beneficiary of a disputed mutation takes possession and the donor acquiesces in such actual denial of title. The present case, however, stands on a different footing. Here, the respondents failed to establish the very foundation of their title, namely the alleged gift itself. Moreover, the subsequent exchange and gift transactions constituted independent assertions of exclusive ownership, thereby furnishing fresh causes for judicial scrutiny of the respondents' claim. The controversy, therefore, could not have been dismissed merely by counting the years from the date of the original mutation while altogether ignoring the foundational question whether the alleged gift itself stood proved?

21. We are conscious of the fact that the findings recorded by the courts below are concurrent. However, where such findings rest upon a misconception of the governing legal principles and result from misreading and non-reading of material evidence, such findings cease to enjoy the sanctity ordinarily attached to concurrent

findings of fact and interference becomes not only permissible but necessary.² The courts below failed to appreciate that the respondents were required to prove the gift and not merely the mutation; that possession by one co-heir does not necessarily extinguish the rights of another; that payment of *hissa batai* was not necessarily consistent with complete divestment of ownership; and that transactions having the effect of excluding female heirs from inheritance must be examined with the utmost degree of scrutiny. The omission to address these questions vitiates the concurrent findings recorded against the petitioners. The findings recorded by the courts below, thus, are not mere findings of fact but findings infected by misapplication of settled legal principles.

22. For the foregoing reasons, this petition is converted into an appeal and the same is allowed. The judgments and decrees passed by the learned Trial Court, the learned Appellate Court and the learned High Court are set aside. Mutation No.75 dated 17.04.1955 and all subsequent transactions founded thereupon are declared illegal, void and ineffective against the inheritance rights of the petitioners. The petitioners shall be entitled to their respective shares in the estate of Roshan son of Bora in accordance with the applicable law of inheritance. The Revenue Authorities shall undertake all consequential corrections in the revenue record and take steps for determination and separation of shares in accordance with law. No order as to costs.

23. Before parting, we consider it necessary to reiterate that the right of inheritance is not a bounty to be bestowed at the pleasure of male family members nor a concession dependent upon custom, convenience or familial goodwill. It is a vested *Shari* and legal right which devolves upon the heirs immediately upon the death of the predecessor-in-interest and cannot be defeated through private

² *Habib Ur Rehman and others v. Abdul Karim (deceased) through L.Rs. and others (2025 SCMR 1262)*, *United Bank Limited (UBL) through its President and others v. Jamil Ahmed and others (2024 SCMR 164)/(2024 PLC 50-Supreme Court)*, *Muhammad Nawaz alias Nawaza and others v. Member Judicial Board of Revenue and others (2014 SCMR 914)*, *Abdul Hameed and others v. Khalid and others (2007 SCMR 938)*, *Mst. Saadat Sultan and others v. Muhammad Zahur Khan and others (2006 SCMR 193)*, *Muhammad Aslam v. Mst. Ferozi and others (PLD 2001 SC 213)* and *Muhammad Akhtar v. Mst. Manna and 3 others (2001 SCMR 1700)*.

arrangements, social pressures, dubious revenue entries or procedural stratagems. This Court has repeatedly emphasized that the law of inheritance occupies a unique position in Islamic jurisprudence because it embodies the Divine scheme of distribution of wealth and seeks to ensure economic justice within the family and society at large. The experience of the courts, however, demonstrates that women continue to be deprived of their lawful inheritance through a variety of devices, including fabricated gifts, manipulated revenue entries, fraudulent relinquishments, coercive family arrangements and prolonged litigation designed to exhaust those asserting their rights.

24. More than three decades ago, this Court in *Ghulam Ali* (supra) undertook a profound examination of the status of women in Islamic law and observed that the protection and enforcement of inheritance rights of women is a matter of public policy of the highest importance. The Court noted that deprivation of women from inheritance is not an isolated phenomenon but a recurring social injustice which survives despite the clear commands of Islam in the following words:

“The Quranic law of inheritance was revealed with the object of securing economic justice and social stability. The shares prescribed therein are neither symbolic nor discretionary. They represent vested rights created by Divine command and any attempt to deny such rights, particularly to women, constitutes a serious departure from the values which Islamic law seeks to protect. ...

The combined effect of all this, amongst others, lead us to assume that in case of need a woman can claim as of right, her maintenance and protection by her menfolk. But more important than this is the guarantee and enforcement of all the rights of women including that of inheritance which, as demonstrated find special place in the injunctions of Islam... The scope of rights of inheritance of females ... is so wide and their thrust so strong that it is the duty of the Courts to protect and enforce them.”

These observations remain as relevant today as when they were first made. Indeed, the persistence of such disputes reveals that the problem is not merely legal but societal. The denial of inheritance rights often begins not in courtrooms but within homes,

families and communities where women are expected to sacrifice rights guaranteed to them by religion and law in the name of tradition, family honour or social convenience.

25. The Constitution of the Islamic Republic of Pakistan does not countenance the deprivation of women from their lawful inheritance. Article 2A incorporates the principles of democracy, freedom, equality, tolerance and social justice as enunciated by Islam, while Article 25 guarantees equality before law and equal protection of law. Articles 23 and 24 recognize and protect the right to acquire, hold and enjoy property and prohibit deprivation thereof save in accordance with law. Article 35 further obligates the State to protect the family, the mother and the child. Article 227 further mandates that all laws shall be brought in conformity with the Injunctions of Islam. These constitutional guarantees, when read in conjunction with the Islamic injunctions relating to inheritance, leave no room for ambiguity. The State is not a passive spectator where women are deprived of property lawfully devolving upon them through succession. The constitutional guarantee of equality before law becomes illusory if women are denied ownership of property that has vested in them by operation of law. Likewise, the constitutional protection of property rights is rendered meaningless if inheritance rights can be defeated through coercion, fraud, social pressure, manipulated revenue entries, dubious family arrangements or prolonged litigation. The Constitution, therefore, imposes a positive obligation upon all organs of the State, including the courts and revenue authorities, to ensure that female heirs are able to obtain, retain and enjoy their lawful inheritance in a practical and effective manner and not merely as a matter of abstract legal entitlement. Any custom, practice, arrangement or device which has the effect of excluding a female heir from her lawful share not only offends the injunctions of Islam but is also inconsistent with the constitutional commitment to equality, dignity, social justice and protection of property rights.

26. The responsibility, however, does not rest upon the State alone. Families, Community leaders, Islamic Scholars and Orators, members of the legal profession, revenue authorities and civil society

all share a collective obligation to ensure that the rights conferred by Almighty Allah are neither diluted nor defeated. A society that celebrates the virtues of justice while tolerating the deprivation of women from their lawful inheritance suffers from a contradiction that cannot be reconciled with either constitutional values or Islamic principles. The true measure of a legal system lies not in the rights it proclaims but in the rights it protects. Courts must, therefore, remain vigilant to ensure that inheritance laws are not circumvented through artificial devices and that women receive, in substance and not merely in theory, the shares to which they are lawfully entitled.

27. We accordingly observe that all courts and revenue authorities dealing with inheritance disputes must remain mindful that the law leans in favour of protecting, rather than defeating, the inheritance rights of women, the vulnerable segment of the society, and any transaction having the effect of excluding a female heir from succession must be examined with the utmost care, caution and judicial scrutiny.

JUDGE

JUDGE

Announced in open court at Lahore on 30.06.2026.

JUDGE

“Approved for Reporting”

M.A. Hassan

*Haseeb Ahmed Randhawa, Law Clerk**